

**CHAPTER lxxxvi.**

An Act to consolidate the rates and to make further provision with respect to the finances of the borough of Middlesbrough and for other purposes. A.D. 1926.
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[4th August 1926.]

WHEREAS the borough of Middlesbrough is a county borough under the government of the mayor aldermen and burgesses of the borough who acting by the council of the borough are the council of the urban sanitary district which comprises the borough :

And whereas it is expedient to provide for the consolidation of the rates levied in the borough and to make further and better provision for regulating the finances of the borough as in this Act contained :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this

A.D. 1926. present Parliament assembled and by the authority of
 — the same as follows (that is to say):—

PART I.

PRELIMINARY.

Short title. **1.** This Act may be cited as the Middlesbrough Corporation Act 1926.

Division of Act into Parts. **2.** This Act is divided into Parts as follows (that is to say):—

Part I.—Preliminary.

Part II.—Rating.

Part III.—Financial.

Interpretation. **3.** In this Act unless the subject or context otherwise requires:—

“The borough” and “the parish” mean respectively the borough of Middlesbrough and the parish of Middlesbrough;

“The Corporation” means the mayor aldermen and burgesses of the borough;

“The town clerk” and “the borough accountant” mean respectively the town clerk and the borough accountant of the borough;

“The borough fund” “the borough rate” “the district fund” “the general district rate” “the burial fund” and “the burial rate” mean respectively the borough fund the borough rate the district fund the general district rate the burial fund and the burial rate of the borough;

“The poor rate” means the poor rate of the parish;

“The general rate” means the poor rate as by this Act authorised to be levied and collected;

“The date of the first new valuation” means the date on which the first new valuation list made under Part II. of the Rating and Valuation Act 1925 comes into operation;

“The added part of Linthorpe” and “the added part of Marton” mean respectively the parts of the parishes of Linthorpe and Marton which were included in the borough by the Middles-

brough (Extension) Order 1913 confirmed by A.D. 1926.
the Local Government Board's Provisional Order
Confirmation (No. 18) Act 1913;

“The trading undertakings” means the tramways undertaking the transporter bridge undertaking the ferries undertaking the electricity undertaking and the baths and washhouses undertaking of the Corporation as for the time being authorised;

“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Corporation;

“The revenues of the Corporation” includes the revenues of the Corporation from time to time arising from any land undertaking or other property for the time being of the Corporation and the rates or contributions leviable by or on the order or precept of the Corporation.

A.D. 1926.
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PART II.

RATING.

Commence-
ment of this
Part of Act.

4. This Part of this Act shall come into operation on the first day of April one thousand nine hundred and twenty-seven.

Transfer to
Corporation
of powers of
vestry.

5. All and every right custom privilege or power other than in matters ecclesiastical and in relation to ecclesiastical charities within the meaning of the Local Government Act 1894 vested in or exerciseable by the parishioners ratepayers or inhabitants in vestry assembled of the parish shall cease to be so vested or exerciseable and every such right custom privilege or power shall for and within the parish be vested in and exerciseable by the Corporation.

Expenses to
be paid out
of borough
fund.

6.—(1) All expenses of the Corporation which if this Act had not been passed would have been payable out of and all rates charges damages penalties and other moneys which if this Act had not been passed would have been paid or carried to the credit of the district fund or general district rate or the burial fund or burial rate shall be charged on and defrayed out of or paid and carried to the credit of the borough fund and the borough rate and in any case for which no specific provision is made in this Part of this Act any reference to the district fund or general district rate or the burial fund or burial rate in any Act or Provisional Order in force in the borough or in any mortgage of or charge on such fund or rate granted by the Corporation in pursuance of the provisions of any such Act or Order shall be deemed to be a reference to the borough fund and the borough rate.

(2) The district fund and the burial fund shall be closed and any balance which on the date upon which this Part of this Act comes into operation is standing to the credit or to the debit of the district fund or the general district rate or the burial fund or the burial rate respectively shall on that date be transferred to the credit or the debit (as the case may be) of the borough fund but any moneys owing to the Corporation in respect of or in connection with the district fund or the general district rate or the burial fund or the burial rate shall notwithstanding the provisions of this

Act continue to be payable to and recoverable by the Corporation as if this Act had not been passed and when received by the Corporation shall be carried to the credit of the borough fund. A.D. 1926.
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(3) The Corporation may make and levy any borough rate prospectively in order to raise money to pay charges and expenses to be incurred thereafter or retrospectively in order to raise money to pay charges and expenses already incurred.

7. The contribution of the parish to the borough rate shall be paid out of the poor rate and the provisions of section 145 (Collection of borough rate in undivided parish) of the Municipal Corporations Act 1882 shall (subject to the provisions of this Part of this Act) apply to the said contribution. Contribu-
tion to
borough
rate to be
paid out of
poor rate.

8. The poor rate (inclusive of the contributions to the borough fund levied as part thereof in pursuance of the provisions of this Act) shall be called "the general rate" but except as expressly provided by this Act that rate shall continue to be subject to all Acts passed and to be passed relating to the poor rate and to be made assessed levied and recovered as the poor rate. Poor rate
to be called
general rate.

9.—(1) The amount in the pound of any general rate to be levied in respect of any hereditament in the added part of Linthorpe during the period of two years from the commencement of this Part of this Act shall not exceed eighty-nine per centum of the amount in the pound of the same general rate to be levied by the Corporation in respect of the like hereditament in the area of the borough as it existed immediately before the operation of the Middlesbrough Extension and Improvement Act 1866. Temporary
differential
rating in
certain
districts.

(2) The amount in the pound of any general rate to be levied by the Corporation in respect of any hereditament in the added part of Marton—

(i) during the period of two years from the commencement of this Part of this Act shall not exceed eighty-two per centum; and

(ii) during the period of three years from the first day of April one thousand nine hundred and twenty-nine shall not exceed eighty-nine per centum

A.D. 1926. — of the amount in the pound of the same general rate to be levied by the Corporation in respect of the like hereditament in the area of the borough as it existed immediately before the operation of the Middlesbrough Extension and Improvement Act 1866.

Differential
rating for
certain
classes of
heredita-
ments.

10. The provisions contained in this section shall have effect with respect to the general rate (that is to say) :—

- (1) In respect of any period before the date of the first new valuation the occupier of any land covered with water or used only as a canal or towing path for the same or as a railway constructed under the powers of any Act of Parliament for public conveyance shall be assessed to the general rate in respect of such hereditaments on the full rateable value thereof but shall be liable to pay in each year in respect of such hereditaments a rate calculated on the basis of seventy-one per centum only of the amount in the pound of the rate payable in respect of hereditaments not entitled to relief from rating :
- (2) In respect of any period before the date of the first new valuation the owner of any tithes or any tithe commutation rentcharge or the occupier of any land used as woodlands shall be assessed to the general rate in respect of such hereditaments on the full rateable value thereof but (subject as next hereinafter provided) shall be liable to pay in each year in respect of such hereditaments a rate calculated on the basis of seventy-two per centum only of the amount in the pound of the rate payable in respect of hereditaments not entitled to relief from rating :
- (3) Notwithstanding anything in subsection (8) of section 2 or subsection (2) of section 69 of the Rating and Valuation Act 1925 during the continuance of the Tithe Rentcharge (Rates) Act 1899 such Act shall subject to the provisions of the Tithe Act 1925 have effect within the borough as if the following provision were

substituted for section 1 thereof (that is to say) :— A.D. 1926.

“ The owner of tithe rentcharge attached to a benefice shall be liable to pay only (a) in respect of any period before the date of the first new valuation fifty-five per centum of the amount payable under subsection (2) of the section of the Middlesbrough Corporation Act 1926 whereof the marginal note is ‘ Differential rating for certain classes of hereditaments ’ in respect of any rate which is assessed on him as owner of that tithe rentcharge and (b) as from the date of the first new valuation fifty-five per centum of the amount assessed upon him as owner of that tithe rentcharge in respect of any general rate (including any additional item thereof) made in accordance with the provisions of the Rating and Valuation Act 1925 and the remaining forty-five per centum thereof shall on demand being made by the collector of the rate on the inspector of taxes for the borough or any district therein be paid by the Commissioners of Inland Revenue and deducted from the moneys payable to the Local Taxation Account ” :

(4) The Corporation shall for the purpose of the estimate to be made by the Minister of Health under section 3 of the Agricultural Rates Act 1923 prepare and transmit to him before the thirty-first day of March one thousand nine hundred and twenty-seven such a return as they might have been required by him to prepare and transmit under paragraph 5 of Part III. of the Second Schedule to the Rating and Valuation Act 1925 if this Act had not been passed :

(5) Nothing in this section shall in any way affect—

(a) The share of the annual grant payable under the Agricultural Rates Act 1896 to any spending authority or save as expressly provided in this Act the operation of that Act; or

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(b) The operation of the Agricultural Rates Act 1923 or the power of the Minister of Health to estimate as respects each half year after the commencement of this Part of this Act the amount of the deficiency which would have arisen by reason of section 1 of that Act if this Act had not been passed in the produce of any rate for the purpose of the issue from the local taxation account of the share of any spending authority in the additional annual grant under the Agricultural Rates Act 1923;

(c) The amount of the contribution for any purpose to be made by the parish out of the poor rate; or

(d) Subject as hereinafter mentioned the operation of the Tithe Act 1925 Provided that for the purpose of subsection (3) of section 7 and subsection (2) of section 14 of that Act this Act shall be deemed to be a local Act modifying the Tithe Rentcharge (Rates) Act 1899 :

(6) (a) If any occupier referred to in subsection (1) or (2) of this section claims that in respect of any rate made or levied he is not receiving the full benefit to which he is entitled under the said subsection he may appeal to the next court of quarter sessions holden not less than twenty-one days after the demand of the rate and according to the provisions of the Summary Jurisdiction Acts but no such appeal shall be entertained by such quarter sessions unless fourteen days' notice in writing of such appeal and of the ground thereof be given by the appellant to the Corporation ;

(b) On appeals under this subsection the court to which such appeal shall be made shall have power to determine the amount payable by the occupier in respect of such rate and to award costs between the parties to the appeal.

Rating of
and collec-
tion of rates
by owners.

11. The provisions of section 11 of the Rating and Valuation Act 1925 shall (notwithstanding anything contained in subsection (10) thereof) come into operation

in the borough on the first day of April one thousand nine hundred and twenty-seven and shall have effect in substitution for the provisions contained in sections 3 and 4 of the Poor Rate Assessment and Collection Act 1869 and paragraph (a) of subsection (1) of section 211 of the Public Health Act 1875 and as from the said date all resolutions agreements and notices then in force under any such provisions as aforesaid shall cease to have effect.

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12. The general rate and the demand note and any other necessary documents to be used for the purposes of or in connection with the general rate shall be in such form as the Minister of Health may from time to time prescribe.

Form of rate &c. to be prescribed by Minister of Health.

13. The purposes to which the borough fund is applicable shall include the provision of a working balance for the payment of current expenses that may be incurred by the Corporation in the exercise or performance of the powers and duties the cost of which is charged on the borough fund or after the date of the first new valuation the general rate fund of the borough and the Corporation may (in estimating the amount sufficient for those purposes and in ordering the borough rate or general rate to be made) include such a sum not exceeding one-half of the estimated expense during the next following years as they may consider to be necessary for the provision of such working balance.

Borough rate may include working balance.

14.—(1) This Act shall be deemed to be a local Act within the meaning of sections 2 22 and 66 of the Rating and Valuation Act 1925 (in this section referred to as "the Act of 1925") and an Act within the meaning of section 69 of the Act of 1925.

Applica-
tion of
Rating and
Valuation
Act 1925.

(2) For the purposes of paragraph (3) (b) of Part II. of the Second Schedule to the Act of 1925 this Part of this Act shall be deemed a local Act passed before the commencement of the Act of 1925 and for the purposes of paragraph (3) (b) of the said Part II. the percentage of the net annual value which corresponds with the percentage of the relief from rating given by this Act shall be deemed to be :—

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or as a railway constructed under the powers of any Act for public conveyance twenty-nine per centum Provided that—

(a) During the period of two years from the commencement of this Part of this Act the said percentage in the added part of Linthorpe shall be deemed to be 36·81 per centum and in the added part of Marton 41·78 per centum; and

(b) During the period of three years from the first day of April one thousand nine hundred and twenty-nine the said percentage in the added part of Marton shall be deemed to be 36·81 per centum; and

(ii) In the case of any tithe or any tithe commutation rentcharge or any land used as woodlands twenty-eight per centum Provided that—

(a) During a period of two years from the commencement of this Part of this Act the last-mentioned percentage in the added part of Linthorpe shall be deemed to be 35·92 per centum and in the added part of Marton 40·96 per centum; and

(b) During the period of three years from the first day of April one thousand nine hundred and twenty-nine the said percentage of twenty-eight per centum in the added part of Marton shall be deemed to be 35·92 per centum :

(3) Paragraph (b) of subsection (3) and subsection (7) of section 2 subsections (1) (2) and (4) of section 4 and sections 5 8 55 and 59 of the Act of 1925 shall be deemed to be incorporated with and to form part of this Part of this Act Provided that for the purposes of the said subsection (7) of section 2 the expression “ valuation list ” means any valuation list made under the Act of 1925.

Repeal of
certain
rating pro-
visions.

15. The following sections of the Middlesbrough Corporation Act 1903 are hereby repealed namely :—

Section 42 (Borough general district and other rates may be assessed levied and collected as borough rates);

Section 43 (Local Government Board may pre- A.D. 1926.
scribe form of rate &c.);

Section 44 (Place and payment of rates);

Section 45 (As to audit of accounts);

Section 47 (Expenses of overseers to be paid).

PART III.

FINANCIAL.

16. All money received by the Corporation in any Revenue
year ending on a thirty-first day of March subsequent and
to the thirty-first day of March one thousand nine expenses
hundred and twenty-seven on account of the revenue of trading
of any of the trading undertakings (including the interest under-
on any reserve fund authorised in connection therewith) takings.
shall be carried to and shall form part of the revenue
for that year of the borough fund and all payments and
expenses made and incurred in respect of each of those
undertakings in the same year shall be paid out of the
borough fund.

17.—(1) The Corporation may if they think fit Reserve
maintain a reserve fund in respect of each of the trading funds.
undertakings by setting aside such an amount as they
may from time to time think reasonable and investing
the same in statutory securities (with power to vary and
transpose such investments) until the fund so formed
amounts to the maximum reserve fund for the time being
prescribed by the Corporation not exceeding a sum equal
in the case of the transporter bridge undertaking to one-
fourth and in the case of each of the other trading under-
takings (except the tramway undertaking) to one-fifth
of the aggregate capital for the time being expended by
the Corporation upon the undertaking.

(2) All interest received in any year from the
investments of any reserve fund so formed shall be carried
to and shall form part of the revenue for that year of the
borough fund but the reserve fund shall in that year be
increased by a sum equal to the amount of such interest.

(3) The reserve fund shall be applicable for the
payment to the borough fund in any year in which as
shown by the accounts to be kept in pursuance of the
provisions of the section of this Act of which the marginal

A.D. 1926. — note is "Separate accounts in respect of trading undertakings" the payments and expenses made and incurred in respect of the undertaking shall exceed the money received in respect of the same undertaking of a sum not exceeding the amount of such excess or for meeting any extraordinary claim or demand at any time arising against the Corporation in respect of the undertaking or for payment of the cost of renewing any part of the works forming part thereof or otherwise for the benefit of the undertaking and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens.

Separate
accounts in
respect of
trading
under-
takings.

18.—(1) As from the thirty-first day of March one thousand nine hundred and twenty-seven the Corporation shall keep their accounts so as to distinguish capital from revenue and as regards the revenue account to show under a separate heading or division in respect of each of the trading undertakings on the one side all receipts including the interest on any reserve fund authorised in connection therewith and on the other side all payments and expenses in respect of the undertaking such payments and expenses being divided so as also to show in each case the amounts expended in respect of each of the following purposes (that is to say):—

- (a) The working and establishment expenses and costs of maintenance of the undertaking;
- (b) The interest on moneys borrowed by the Corporation for the purposes of or connected with the undertaking;
- (c) The requisite appropriations instalments or sinking fund payments in respect of moneys borrowed for the purposes of the undertaking;
- (d) The amount (if any) paid to a reserve fund created by the Corporation in accordance with the provisions of the section of this Act of which the marginal note is "Reserve funds";
- (e) All other expenses (if any) of the undertaking properly chargeable to revenue:

Provided that in the case of the electricity undertaking if the total receipts from revenue in respect thereof in any year shall exceed the total of the payments and expenses on account of revenue in respect thereof in

that year as shown by the accounts to be kept in pursuance of this section (including any payments to a reserve fund) by an amount exceeding five pounds per centum per annum upon the aggregate capital expenditure of that undertaking the Corporation shall make such reductions or adjustments in the charge for the supply of electrical energy as in their judgment will reduce the excess of the said receipts over the said payments to an amount not exceeding the amount of the said five per centum.

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(2) The Corporation shall show in their accounts relating to any undertaking or purpose all items (including receipts and payments in respect of loans applicable thereto) which ought to be entered therein in order to show the financial position of the undertaking or purpose.

(3) In all cases in which the Corporation keep separate accounts for separate purposes they shall as far as may be reasonably practicable apportion between those accounts or carry to either of them any receipts credits payments and liabilities which from time to time ought to be so apportioned or carried.

19. As from the first day of April one thousand nine hundred and twenty-seven the following enactments are hereby repealed (namely) :—

Repeal of certain provisions relating to accounts and revenues.

of the Middlesbrough Corporation Electric Lighting Order 1898;

Section 52 (Application of revenue) :

of the Middlesbrough Corporation (Transporter Bridge) Act 1907;

Section 59 (Application of bridge revenue) :

of the Middlesbrough Corporation Act 1919;

Section 98 (Application of revenue of tramway undertaking of Corporation).

20. Subject to any priority existing at the passing of this Act all stock of and loans to the Corporation and the dividends and interest thereon shall be charged indifferently on all the revenues of the Corporation and shall rank equally one with the other without any priority whatsoever.

All stock and loans to rank equally.

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Security for
future
borrowing.

21. In order to secure the repayment of any money hereafter borrowed by the Corporation under any statutory borrowing power and the payment of interest thereon the Corporation may mortgage or charge the revenues of the Corporation.

Power to
use one
form of
mortgage
for all
purposes.

22.—(1) Where the Corporation have for the time being any statutory borrowing power they may for the purpose of exercising such power grant mortgages in pursuance of the provisions of this section.

(2) Every mortgage granted under this section shall be by deed truly stating the consideration and the time or the mode of ascertaining the time and the place of payment and shall be sealed with the corporate seal of the Corporation and may be made in the form contained in the Schedule to this Act or to the like effect.

(3) All mortgages granted under section 35 (Security for principal moneys) of the Middlesbrough Corporation Act 1910 or under this section shall rank equally without any priority or preference by reason of any precedence in the date of any statutory borrowing power or in the date of the mortgages or on any other ground whatsoever and shall also rank equally with all other securities granted by the Corporation at any time after the date of the first grant of a mortgage under the said section 35.

(4) The repayment of all principal sums and the payment of interest thereon secured by mortgages granted under the said section 35 or this section shall be and the same are by virtue of this Act charged indifferently upon all the revenues of the Corporation.

(5) There shall be kept at the office of the town clerk a register of the mortgages which have been granted under the said section 35 and which are subsisting at the passing of this Act or which may be granted under this section and within fourteen days after the date of any such last mentioned mortgage an entry shall be made in the register of the number and date thereof and of the names and descriptions of the parties thereto as stated in the deed.

Every such register shall be open to inspection by any mortgagee and other person entitled to any mortgage granted under the said section 35 or under this section during office hours at the said office without fee or reward

and the town clerk or other the person having the custody of the same refusing to allow such inspection shall be liable to a fine not exceeding five pounds.

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(6) Any mortgagee or other person entitled to any mortgage granted under the said section 35 or under this section may transfer his estate rights and interests therein to any other person by deed duly stamped truly stating the consideration and such transfer may be according to the form contained in the Schedule to this Act or to the like effect and shall not contain any recital trust power or proviso whatsoever.

(7) There shall be kept at the office of the town clerk a register of the transfers of mortgages which have been granted under the said section 35 and which are subsisting at the passing of this Act or which may be granted under this section and within thirty days after the date of every deed of transfer granted under this section if executed within the United Kingdom or within thirty days after its arrival in the United Kingdom if executed elsewhere the same shall be produced to the town clerk who shall on payment of a sum not exceeding five shillings cause an entry to be made in such register of its date and of the names and descriptions of the parties thereto as stated in the deed of transfer and until such entry is made the Corporation shall not be in any manner responsible to the transferee.

(8) On the registration of any transfer in accordance with this section the transferee his executors or administrators shall be entitled to the full benefit of the original mortgage and the principal and interest secured thereby and any transferee may in like manner transfer his estate rights and interest in any such mortgage and no person except the last transferee his executors or administrators shall be entitled to release or discharge any such mortgage or any moneys secured thereby.

(9) If the town clerk wilfully neglects or refuses to make in the register any entry by this section required to be made he shall be liable to a penalty not exceeding twenty pounds.

(10) The said section 35 is hereby repealed but without prejudice to the validity of any mortgage granted or thing done or suffered thereunder before the date of the passing of this Act and every mortgage or transfer

A.D. 1926. of mortgage granted under that section before and
— subsisting at the date of the passing of this Act shall
subject to the provisions of this section remain in full
force and effect.

Sinking
fund.

23.—(1) If the Corporation determine to repay by
means of a sinking fund any moneys borrowed after the
passing of this Act by virtue of any statutory borrowing
power such sinking fund shall be formed and maintained
either—

(a) By payment to the fund throughout the pre-
scribed period of such equal annual sums as
will together amount to the moneys for the
repayment of which the sinking fund is formed
A sinking fund so formed is hereinafter called
a “non-accumulating sinking fund”; or

(b) By payment to the fund throughout the pre-
scribed period of—

(i) such equal annual sums as will with
accumulations at a rate not exceeding three
and a half per centum per annum or such
higher rate as the Minister of Health may from
time to time approve be sufficient to pay off
within the prescribed period the moneys for
the repayment of which such sinking fund
is formed; and

(ii) such annual sums as are equivalent to
interest on the amount from time to time in
the fund at the rate per centum per annum
on which the annual payments to the fund
under paragraph (i) hereof are based;

A sinking fund so formed is hereinafter
called an “accumulating sinking fund.”

(2) Every sum paid to a sinking fund shall (subject
to the provisions of this Act) unless applied in repayment
of the loan in respect of which the sinking fund is formed
be invested in statutory securities the Corporation being
at liberty from time to time to vary and transpose such
investments.

(3) All interest received in any year on the invest-
ments of a sinking fund shall be carried by the Corporation
to the credit of and shall form part of the revenue for that
year of the borough fund but the contribution to be made
to the sinking fund out of the borough fund shall in that

year be increased by a sum equal to the interest that would have accrued to the sinking fund during that year if interest had been accumulated therein at such rate that the accumulations would with the sums set apart be sufficient to pay off the moneys borrowed within the prescribed period.

(4) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the moneys for the repayment of which the sinking fund is formed. Provided that in the case of an accumulating sinking fund the Corporation shall pay into the fund each year during the residue of the prescribed period a sum equal to the interest which would have been produced in that year by such sinking fund or part thereof so applied if invested and accumulated at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Corporation in addition to the payments provided for by this Act.

(6) If it appears to the Corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose and if it appears to the Minister of Health that any such increase is necessary the Corporation shall increase the payments to such extent as that Minister may direct.

(7) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(8) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Minister of Health be more than

A.D. 1926. — sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may reduce the payments to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Minister of Health be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed.

(9) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Minister of Health be sufficient to repay the moneys in respect of which the sinking fund is formed within the prescribed period the Corporation may with the consent of that Minister discontinue the annual payments to such sinking fund until the Minister of Health shall otherwise direct.

(10) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Corporation with the consent of the Minister of Health may determine.

(11) The foregoing provisions of this section instead of the provisions with respect to the formation of any sinking fund of any other Act shall apply with respect to any sinking fund formed by the Corporation for the repayment of any moneys borrowed before the passing of this Act under any statutory borrowing power and for that purpose the Corporation shall make such adjustments of any existing sinking funds and of their books and accounts relating thereto as the Minister of Health may sanction or require.

Use of
moneys
forming part
of sinking
and other
funds.

24. Notwithstanding anything in this or any other Act contained the Corporation may use for the purpose of any statutory borrowing power possessed by them any moneys forming part of any sinking fund loans fund redemption fund or reserve fund of the Corporation (in this section respectively referred to as "the lending fund") and not for the time being required for the purpose for which the fund has been formed subject to the following conditions :—

(1) The moneys so used shall be repaid by the borrowing fund to the lending fund as and when

required for meeting the obligations for which the lending fund was established and if and so far as they are not so required within the period by the methods and out of the fund rate or revenue within by and out of which a loan raised under the statutory borrowing power would be repayable Provided that the Corporation may if they so determine repay to the lending fund the money so used at any time within the period aforesaid :

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- (2) Interest shall be paid by the borrowing fund to the lending fund on any moneys so used and for the time being not repaid to the fund Such interest shall be calculated at a rate per centum per annum to be determined by the Corporation and to be equal as nearly as may be to the rate of interest which would be payable on a loan raised on mortgage under the statutory borrowing power and shall be paid out of the fund rate or revenue which would be applicable to the payment of interest on a loan raised under the statutory borrowing power :
- (3) The statutory borrowing power for the purpose of which the moneys are so used shall be deemed to be exercised by such use as fully in all respects as if a loan of the same amount had been raised in exercise of the power and the provisions of any enactment as to the reborrowing of sums raised under the statutory borrowing power shall apply thereto.

25. When under any general or local Act of Parliament the sanction of a Government department (including the Electricity Commissioners) is given to the borrowing of any money by the Corporation the production of the instrument whereby such sanction is given shall as between the Corporation and the lender be conclusive evidence that the borrowing by the Corporation of any sum not exceeding the sum mentioned in such instrument is within the statutory borrowing powers of the Corporation.

Sanction to loans to be conclusive evidence.

26.—(1) Notwithstanding anything in the Public Health Acts Amendment Act 1890 or in any other Act or Order contained the Corporation may if they think fit

Consolidated loans fund.

A.D. 1926. — as from the thirty-first day of March one thousand nine hundred and twenty-seven or as from any succeeding thirty-first day of March establish a fund to be called "the consolidated loans fund" to which shall be paid as and when they are received :—

- (a) All moneys borrowed by the Corporation whether by issue of stock or other security together with any moneys temporarily borrowed without security in connection with the exercise of statutory borrowing powers ;
- (b) All moneys of a capital nature received by the Corporation whether from the sale of capital assets or otherwise except such as are applied by the Corporation with due authority to another capital purpose ; and
- (c) The appropriate sums provided in each year out of other funds of the Corporation to comply with the terms and conditions as to repayment attaching to their several borrowing powers :

And there shall also be carried to the credit of the consolidated loans fund the unapplied balances of all moneys borrowed or received except of such moneys as have been borrowed from the Public Works Loan Commissioners and of all sums provided by the Corporation as aforesaid before the thirty-first day of March as from which the consolidated loans fund shall be established.

(2) The moneys of the consolidated loans fund shall be used or applied by the Corporation :—

- (a) In the exercise of any statutory borrowing power by transfer of the required amount to the appropriate fund and account of the Corporation ; or
- (b) In the redemption of stock or any other securities issued by the Corporation the purchase of stock for extinction or the repayment of any moneys borrowed by the Corporation :

And any moneys of the consolidated loans fund pending use or application as aforesaid may be invested in statutory securities and the sums realised by the sale of such securities shall be repaid on receipt of the consolidated loans fund.

(3) Save as in this Act expressly provided all the obligations of the Corporation to the holders of stock or other securities of the Corporation shall continue in force. A.D. 1926.

(4) The powers conferred by this section shall not be put into operation by the Corporation except in accordance with a scheme to be approved by the Minister of Health and such scheme may make provision for any matters incidental to the establishment and administration of the consolidated loans fund.

27. Notwithstanding anything contained in the Municipal Corporations Act 1882 any money borrowed or to be borrowed by the Corporation in pursuance of that Act shall be repaid within such period not exceeding sixty years as the Minister of Health shall in each case prescribe. Period for repayment of loans under Municipal Corporations Act 1882.

28.—(1) The Corporation may from time to time appoint and pay one or more members of the Institute of Chartered Accountants or of the Society of Incorporated Accountants and Auditors to act as auditor or auditors of the accounts of the Corporation in such manner as the Corporation direct. Any auditor or auditors appointed by the Corporation under the provisions of this section and for the time being holding office is or are in this section referred to as "the appointed auditor." Professional auditors.

(2) Every appointment of an auditor or auditors under this section shall be in writing under the seal of the Corporation and may be for such term and subject to such conditions as the Corporation may think fit.

(3) Subsection (1) of section 27 (Audit and publication of treasurer's accounts) of the Municipal Corporations Act 1882 shall apply and have effect as if the appointed auditor had been referred to therein as well as or instead of the borough auditors and in addition the appointed auditor shall be entitled to require from any officer of the Corporation all such papers books accounts vouchers sanctions for loans information and explanations as may be necessary for the performance of his duties.

(4) The appointed auditor shall include in or append to any certificate given by him with reference to the accounts of the Corporation such observations and recommendations (if any) as he may deem necessary or expedient with respect to the accounts and any matter arising thereout or in connection therewith.

A.D. 1926.

(5) If and while the Corporation exercise the powers of subsection (1) of this section section 25 (Borough auditors) of the Municipal Corporations Act 1882 shall not apply within the borough.

(6) Section 19 (Paid auditors) of the Middlesbrough Corporation Act 1892 is hereby repealed.

Return to
Minister of
Health with
respect to
repayment
of debt.

29.—(1) The borough accountant shall if and when he is requested by the Minister of Health so to do transmit to the Minister a return showing the provision made for the repayment of any loans raised by the Corporation under any statutory borrowing power.

(2) The return shall show such particulars and shall be made up to such date and in such form as the Minister may require and shall if so required by him be verified by statutory declaration of the borough accountant and shall be transmitted within one month after the making of the request and in the event of the borough accountant failing to make such return or to make such declaration he shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by the Minister in a court of summary jurisdiction and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(3) If it appears to the Minister by such a return as aforesaid or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by any enactment relating to the statutory borrowing power or by the Minister in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Minister may by order direct that the sum in such order mentioned not exceeding the amount in respect of which default has been made shall be paid or applied in the manner and by the date in such order mentioned and the Corporation shall notify the Minister as soon as the order is complied with and any such order shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(4) The provisions of this section shall extend and A.D. 1926.
apply to any annual returns required to be made to the —
Minister with regard to the repayment of debt by any
provisions of the local Acts or Provisional Orders now in
force in the borough notwithstanding anything contrary
to or inconsistent therewith in any such Act or Order.

30. The costs charges and expenses preliminary to Costs of
and of and incidental to the preparing applying for Act.
obtaining and passing of this Act as taxed by the taxing
officer of the House of Lords or of the House of Commons
shall be charged upon and paid by the Corporation out
of the borough fund and may be spread over a period not
exceeding five years from the passing of this Act and for
that purpose the sum requisite may be borrowed
temporarily by the Corporation.

A.D. 1926.

The SCHEDULE referred to in the
foregoing Act.

FORM OF MORTGAGE.

Mortgage No.

BOROUGH OF MIDDLESBROUGH.

By virtue of the Middlesbrough Corporation Act 1926 and of other their powers in that behalf them enabling the mayor aldermen and burgesses of the borough of Middlesbrough (hereinafter referred to as "the Corporation") in consideration of the sum of _____ pounds (hereinafter referred to as "the principal sum") paid to the treasurer of the borough by _____ of _____ (hereinafter referred to as "the mortgagee") do hereby grant and assign unto the mortgagee [his] executors administrators and assigns such proportion of the revenues of the Corporation (which expression includes the revenues of the Corporation from time to time arising from any land undertaking or other property for the time being of the Corporation and the rates or contributions leviable by or on the order or precept of the Corporation) as the principal sum doth or shall bear to the whole sum which is or shall be charged on the said revenues To hold unto the mortgagee [his] executors administrators and assigns from the day of the date of these presents until the principal sum shall be fully paid and satisfied with interest for the same (subject as hereinafter provided) at the rate of _____ per centum from the _____ day of _____ one thousand nine hundred and _____ until the payment of the principal sum such interest to be paid half-yearly on the _____ day of _____ and the _____ day of _____ in each year And it is hereby agreed that the principal sum shall be repaid at the office of the treasurer of the said borough (subject as hereinafter provided) at the option of the Corporation or of the mortgagee by the party desiring to make such repayment or requiring such repayment to be made as the case may be giving to the other _____ calendar months' notice in writing of such their or _____ intention such notice ending on the first day of January or the first day of July in any year and not to be given before the _____ day of _____ 19 _____ :

Provided always and it is hereby agreed and declared that the before-mentioned time for repayment may be extended to such

subsequent day or days and upon any such extension the before-mentioned rate of interest may be altered to such other rate or rates of interest as shall from time to time be agreed upon between the Corporation and the mortgagee and mentioned in an endorsement to be made hereon under the hand of the mayor or the town clerk of the borough for the time being and that upon any such endorsement being made whether relating to extension of time only or to extension of time with alteration of rate of interest the provisions thereof shall be incorporated herewith and shall operate and take effect as though they had been originally inserted herein.

A.D. 1926.
—

In witness whereof the Corporation have caused their corporate seal to be hereunto affixed this day of
one thousand nine hundred and

Town Clerk.

Received from the within named being the
the sum of consideration money expressed to be paid by
to the corporation of Middlesbrough.

Borough Treasurer.

Entered on the Middlesbrough register of mortgages the
day of 19

Town Clerk.

THE ENDORSEMENT WITHIN REFERRED TO.

The within-named consenting
the within-mentioned time for repayment of the within-mentioned
principal sum of is hereby extended to the
day of one thousand nine
hundred and and the interest to be paid thereon
on and from the day of one
thousand nine hundred and is hereby declared
to be at the rate of per centum per annum.

Dated this day of
One thousand nine hundred and

FORM OF TRANSFER OF MORTGAGE.

I
[of]
in consideration of the sum of pounds
paid to me by of
as "the transferee") do hereby transfer to the transferee [his]
 (hereinafter referred to

[Ch. lxxxvi.] *Middlesbrough* [16 & 17 GEO. 5.]
Corporation Act, 1926.

A.D. 1926. executors administrators and assigns the mortgage number
_____ of the revenues of the mayor
aldermen and burgesses of the borough of Middlesbrough bearing
date the _____ day of _____ and all my
right and interest under the same subject to the several conditions
on which I hold the same at the time of the execution hereof and
I the transferee for myself my executors administrators and assigns
do hereby agree to take the said mortgage security subject to
the same conditions.

Dated this _____ day of _____
one thousand nine hundred and _____

Printed by EYRE and SPOTTISWOODE, LTD.,
FOR
WILLIAM RICHARD CODLING, Esq., C.B., C.V.O., C.B.E., the King's Printer of
Acts of Parliament.

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